6.1.5 — Factors Influencing Jury Decision-Making

Student Notes Workbook · 学习笔记工作册

characteristics of the defendant（被告特征）· pre-trial publicity（审前报道）· expert testimony（专家证词）· Penrod and Cutler (1989)

Name 姓名: _____ Class 班级: _____ Start date: _____

How to use this workbook 使用方法

1. **Read one section of the courseware, then fill the matching page.** 边读课件边填空——填空的价值在于"想不起来"的那一刻。
2. **Every study = who · what · number.** 每个研究记三样：谁（被试）、操纵了什么、得到什么数字。数字就是答案里的 Evidence。
3. **Every criticism needs two halves.** 评价 = *哪里有问题* + *为什么这是个问题*。只写前半句只拿一半分。
4. **Check the answer key, correct in pen, then do the brain dump page from memory.** 对答案 → 用笔订正 → 合上笔记自测。

What this topic covers 内容地图

Syllabus 考纲	Content 内容	Workbook pages
6.1.5	term jury · mock jury · factor defendant characteristics (race, attractiveness, accent) · pre-trial publicity · expert testimony	pp. 2–18
Key studies 关键研究	evid Mitchell et al. · Sigall & Ostrove · Steblay et al. · Ruva et al. · Jones et al. · Benton et al. · **Penrod & Cutler (1989)**	throughout
Exam skills 考试	exam mock jury strengths/weaknesses · 3-mark describe · 2-mark justify · 8-mark evaluate plan	pp. 19–20
Self-test 自测	Brain dump from memory · answer key	pp. 20–22

The one-line map of the whole topic 全章一句话

A jury is meant to weigh *only the evidence* — but three things get in:
① **pre-trial publicity** 在开庭*之前*就把观点塞给了未来的陪审员（还可能被误当成法庭上的证据）。
② **defendant characteristics** 在法庭*上*触发刻板印象：种族、外表、口音。
③ **expert testimony** 是一次*纠错尝试*：把心理学对记忆的发现搬进法庭——但它自己也可能带来新偏差。

Review tracker 复习打卡

☐ Three factors placed on the timeline 三个因素按时间轴归类 Date: _____

☐ Key numbers written from memory 关键数字默写（59% vs 45% · 73% vs 27% · 60% vs 95% · 30% vs 81% · 128 experiments · 538 students） Date: _____

☐ Penrod and Cutler's three studies matched to method and finding 三个研究配对 Date: _____

☐ 8-mark essay written with evidence on both sides 双边证据的 8 分题写完 Date: _____

☐ Brain dump done with the book closed 合上笔记完成自测 Date: _____

§1 · Foundations — what a jury is, and why we study mock juries · 基础定位

ANSWERS → 课件 §1–§2

Key terms 术语填空 — learn word for word 一字不差地背

mock jury （模拟陪审团）	A study involving participants experiencing a trial using a _____ or _____, upon which the participant comes to a verdict about the defendant on trial.（video · transcript 录像 · 文字记录）
line-up （列队辨认）	A method used by _____ to help witnesses identify criminals; witnesses are shown a series of _____ and asked to identify the suspect.（police · images 警方 · 图片）
deliberation （评议）	The stage where the jury _____ the evidence and _____ the case together to reach a verdict. It is completely _____ and cannot be recorded.（review · discuss · confidential 复审 · 讨论 · 保密）
foreperson （陪审团发言人）	The jury member appointed to _____ back to the judge.（present the decision 宣布决定）

How a jury works 陪审团怎么运作

1. Typically _____ jurors, selected _____ from an electoral roll of local people.（12 · randomly 12 人 · 随机）
2. Strict rules: jurors must not _____ with anyone outside the jury, and must avoid _____ of the case.（discuss the case · media coverage 讨论案件 · 媒体报道）
3. The judge instructs the jury on the law but _____ — the judge relies entirely on the jury.（cannot decide guilt 不能定罪）
4. In court jurors hear evidence from both sides, witness testimony, the defendant's statement, and sometimes _____.（expert testimony 专家证词）

The research problem 研究困境 — 一句话分清

评议室**谁都不能进、不能录音** → 真实陪审团**无法被直接研究** → 所以本章几乎所有研究都用 **mock jury**。
这既是本章一切研究的来源，也是最重要的**评价武器**（§16）。

The first exam move 考场第一步

给一个场景，先问：**这个影响是什么时候到达陪审员的？** 开庭前 → pre-trial publicity；开庭中（看到/听到被告）→ defendant characteristics；有人解释证据 → expert testimony。这一步直接把选项从 3 个砍到 1 个。

§2 · factor Factor 1a · Race — the concept

ANSWERS → 课件 §4

The mechanism 机制

During a trial jurors can see and hear the defendant. Characteristics such as _____ can trigger _____ that jurors already hold.（race, gender, attractiveness, accent · stereotypes 种族、性别、外表、口音 · 刻板印象）

> **How a stereotype becomes a verdict 刻板印象怎么变成判决**
>
> 看到某一类人 → 脑子自动归类（categorise）→ 自动带上"这类人更可能犯罪"的预期 → 影响对证据的解读。**陪审员不是故意的——这就是为什么它危险。**

Why researchers take race seriously 为什么认真对待

- **Human Rights Watch (2000)** reported that minorities are _____ imprisoned in America — a larger share of the prison population than of the general population.（disproportionately 不成比例地）
- Juries are randomly selected, but problems arise when the defendant's race _____.（differs from the majority of jurors 与陪审员多数不同）
- In **voir dire**（陪审员遴选）, lawyers may question potential jurors. Selecting by race directly is _____, but lawyers can ask _____ about racial bias.（not permitted · indirectly 不被允许 · 间接地）

The common finding from mock trials 模拟审判的常见发现

White jurors in mock trials show _____ bias to Black defendants: giving them _____ sentences, and finding _____ Black defendants guilty than white defendants.（negative · harsher · more 负面 · 更重 · 更多）

> **Vocabulary to use in answers 答案用词**
>
> **bias 偏向**（不是 prejudice 也可以）· **leniency 宽大**（判得轻）· **lenient**（形容词）· **guilty verdict 有罪判决**。写评价时用 "showed leniency to defendants of their own race" 比 "was nicer" 专业得多。

§3 · evid Factor 1a · Race — the evidence（填关键数字）

ANSWERS → 课件 §5

Study	Key finding 关键发现
Bradbury and Williams (2013)	Real jury data across US states. Black defendants were _____ likely to be convicted by juries with a higher proportion of _____ jurors, and _____ likely to be convicted by juries with more _____ jurors.（less · Black · white and Hispanic 更少 · 黑人 · 白人和拉美裔）
Skolnick and Shaw (1997)	Mock jury, students at _____. Black and white jurors read a murder trial with a _____ defendant with high or low _____ status.（California State University · Black or white · celebrity 名人）
Skolnick and Shaw — results	_____ jurors judged the Black defendant more favourably and gave _____ sentences; _____ jurors did not differentiate. Celebrity status had _____ effect — race was the main factor.（Black · more lenient · white · no）
Skolnick and Shaw — interpretation	A Black defendant received _____ guilty verdicts regardless of the jury's race — possibly because white jurors feared _____.（fewer · being called racist 被指为种族主义者）
Abwender and Hough (2001)	_____ participants from education programmes; Black, white and _____ defendants. Black participants showed _____ to their own race; Hispanics showed _____; white participants showed _____ bias.（207 · Hispanic · leniency · the opposite · no）
Mitchell et al. (2005)	_____ of _____ data samples from _____ studies. A _____ but _____ racial bias: more guilty verdicts when the defendant was a _____ race from the juror.（meta-analysis · 46 · 34 · small · significant · different）
Mitchell et al. — moderators	Bias was stronger when the juror was _____; affected by whether the jury received _____, and by the _____ of the research.（Black · instructions · publication date 指示 · 发表年份）

Read the four rows as one sentence 四行读成一句

单个研究**方向不一致**（有的更重、有的更轻、有的没差别）→ **Mitchell 的元分析收口**：偏向确实存在，但**小**，且取决于条件。

答案句式："There is a *small but significant* racial bias (Mitchell et al., 2005) — stronger than saying 'juries are racist'."

§4 · eval Evaluating race as a defendant characteristic

ANSWERS → 课件 §6

Evaluation 评价 — 每条都要写"为什么这是问题/为什么有价值"

Point	What + why 内容 + 为什么
Strength: meta-analysis	Mitchell et al. (2005) combined _____ samples and still found an effect — so the bias is not a _____.（46 · one-off 偶然）
Strength: some evidence is real	Bradbury and Williams used _____ data; Human Rights Watch documented real _____ patterns — not just mock juries.（real conviction · imprisonment 真实定罪 · 监禁）
Weakness: inconsistent findings	Skolnick and Shaw found _____; Abwender and Hough found _____ — so the bias "may not be consistent among racial groups".（leniency · no white bias 宽大 · 白人无偏向）
Weakness: mostly mock juries	Students reading a summary do not decide a real person's _____, so the effect may be different in reality.（freedom 自由）
Weakness: ecological validity	Mitchell et al. found bias _____ in more realistic procedures, and was _____ significant when guilty/not-guilty was the measure and jury instructions were given.（reduced · not 减少 · 不）

The application: debiasing a jury 应用：给陪审团"去偏见"

Ingriselli (2014)

Tested a **debiasing jury instruction**: telling jurors before the trial not to be influenced by _____. Result: a _____ number of guilty verdicts for Black defendants from _____ juries.（bias, prejudice or sympathy · lower · majority-white 偏见、歧视或同情 · 更少 · 多数白人）

Why Ingriselli is exam gold 为什么这个例子值钱

考题问「研究有什么用 / 怎么改进司法制度」时，Ingriselli 是**唯一直接给出解决方案**的研究——写成现成的 practical application 段。

§5 · factor Factor 1b · Attractiveness — Sigall and Ostrove (1975)

ANSWERS → 课件 §7

The design 设计（填数字）

- _____ participants, asked to recommend a prison sentence between _____ and _____ years.（120 · 1 · 15）
- Each received a card with a crime — _____ or _____ — and a photograph of a woman called _____.（burglary · fraud · Barbara Helms）
- _____ groups of _____ participants: attractive / unattractive / _____ photograph × the two crimes.（6 · 20 · no (control)）

The results matrix 结果矩阵

Photo shown	Burglary 入室盗窃	Fraud 诈骗
Attractive 好看	_____ sentence — attractiveness is not associated with burglary.（shorter 更短）	_____ sentence — the assumption that an attractive person uses their looks to _____.（longer · con money out of people 用外表骗钱）
Unattractive 不好看	Similar length to the _____ condition for both crimes.（no photograph (control) 无照片对照）	
No photo 无照片	Control condition — baseline for comparison.	

The key understanding 关键理解

不是"好看就判得轻"。**好看和罪名会交互（interact）**：诈骗时好看判得更重（觉得她在用外表骗钱），盗窃时好看判得轻。

"不好看"和"无照片"结果差不多 → 起作用的是**好看本身**，不是"有照片"。

Two ready-made criticisms 两条现成批评

1. The study does not reflect what a real jury does: participants recommended a _____, but a real jury only decides _____ — the _____ sets the sentence.（sentence length · guilt · judge 刑期 · 有罪 · 法官）
2. _____ is highly subjective — hard to control as a variable.（Attractiveness 外表吸引力）

Key term 术语

Halo effect 光环效应 — a cognitive bias in which the _____ of a person influences our judgements of their _____.（appearance · character 外表 · 品格）

§6 · factor Factor 1c · Accent 口音

ANSWERS → 课件 §7

Study	Key finding 关键发现
Lev-Ari and Keysar (2010)	Participants judged the truth of statements by a _____ speaker (American-English), a _____ non-native speaker (Polish, Turkish, German) or a _____ non-native speaker (Korean, Turkish, Italian).（native · mild · strong）
Lev-Ari and Keysar — result	Strong non-natives were judged _____ truthful — probably due to the _____ of processing their speech.（less · difficulty 困难）
Dixon and Mahoney (1997)	UK study. Participants heard a suspect talking to a police officer in either a _____ accent or a _____ accent (Birmingham). The regional accent was rated _____ guilty.（standard English · regional · more）
Seggie (1983)	Australian participants heard _____ accents across two crimes (assault or theft). Accent _____ with the type of crime: broad Australian = more guilty of _____; British = more guilty of _____.（three · interacted · assault · theft）

The pattern across both characteristics 两个特征的共同模式

外表和口音的发现**都不是"一刀切"**：

· Sigall & Ostrove：好看的效果**取决于罪名**。

· Seggie：口音的效果**取决于罪名**（assault vs theft）。

考场口诀：**"效果取决于它和什么搭配"** — 这一句就能撑起一个评价点。

Quick self-test 快速自测

1. Name the two crimes in Sigall and Ostrove (1975): _____（burglary and fraud）
2. Name the two crimes in Seggie (1983): _____（assault and theft）
3. Which accent did Dixon and Mahoney use as the regional accent? _____（Birmingham 伯明翰）
4. Why did Lev-Ari and Keysar think strong non-native speakers seemed less truthful? _____（processing difficulty 理解起来费劲）

§7 · factor Factor 2 · Pre-trial Publicity — the concept

ANSWERS → 课件 §8

Key term 术语填空

pre-trial publicity (PTP) 审前报道： information about a case and the people in it that reaches _____ through the _____ _____ the trial starts.（potential jurors · media · before 未来的陪审员 · 媒体 · 开庭前）

Two mechanisms 两个机制

Mechanism	How it works 怎么起作用
Schema（图式）	A juror's own mental framework influences how they process pre-trial information, and later _____ their perception of the evidence in court.（alters 改变）
Source monitoring error（来源监控错误）	PTP is _____ with information presented in court: the juror believes they heard something as evidence when they actually _____ it in the news.（confused · read 混淆 · 读到）

One-line version 一句话版

来源监控错误 = "我**记得**这件事，但**记错了从哪儿听来的**。" 新闻细节被当成法庭证词。

上一章 Crombag 的幻影电视画面就是同一个机制——两个考点可以互相支援。

Two types of publicity 两类报道

Type	What it contains	How long it lasts
Factual 事实型	_____ information about the defendant or the case, such as what happened during the crime.（Incriminating 定罪的）	_____-lived — it can be redressed as the trial presents more information.（shorter 短）
Emotional 情绪型	No incriminating information, but content that arouses _____ — e.g. the defendant's or victim's _____.（negative emotions · past 负面情绪 · 过去）	_____-lasting — it is not about facts, so facts in court do not undo it.（longer 长）

Exam move 考场动作

题目问 "explain one aspect of pre-trial publicity"：先选类型（factual / emotional），再配一个机制（schema / source monitoring error），最后落到场景里的人身上。

§8 · evid Factor 2 · Pre-trial Publicity — the evidence（填关键数字）

ANSWERS → 课件 §9

Study	Key finding 关键发现
Ruva, McEvoy and Bryant (2007)	Negative PTP made the defendant seem _____ guilty and _____ credible. _____% of collaborating jurors voted guilty, versus _____% exposed to no PTP.（more · less · 73 · 27）
Ruva et al. — after deliberation	The effect was _____ after jury deliberation — but jurors still _____ pre-trial information with case evidence.（reduced · confused 减少 · 混淆）
Steblay et al. (1999)	_____ of _____ empirical tests representing _____ subjects. Negative PTP: _____% guilty versus _____% with less or no negative PTP.（meta-analysis · 44 · 5,755 · 59 · 45）
Steblay et al. — when stronger	Murder and other _____ offences; _____ pieces of negative information; greater _____ between exposure and judgement.（serious · multiple · length of time 严重 · 多条 · 时间间隔）
Ogloff and Vidmar (1994)	Studied _____ as PTP. Potential jurors showed negative bias and were _____ of it. TV alone, or TV plus print, had more influence than _____ alone.（television · unaware · print 电视 · 没意识到 · 印刷媒体）
Kovera (2002)	Assault/rape cases with _____, _____ and neutral coverage. Pro-defence viewers said they needed _____ evidence before convicting.（pro-defence · pro-prosecution · more 有利辩方 · 有利控方 · 更多）
Ruva and LeVasseur (2012)	_____ of 30 mock-jury deliberations. Exposed jurors discussed ambiguous facts in ways that supported the _____, rarely the defence — and were _____ instructions not to mention PTP.（content analysis · prosecution · unwilling to follow 内容分析 · 控方 · 不愿遵守）

Five studies in five words 五个研究各记五个字

Ruva 2007 = **73 比 27** · Steblay 1999 = **元分析最硬** · Ogloff & Vidmar = **电视更狠** · Kovera = **好报道也偏** · Ruva 2012 = **评议还在偏。**

§9 · eval Evaluating pre-trial publicity

ANSWERS → 课件 §10

Evaluation 评价

Point	What + why 内容 + 为什么
Strength: two meta-analyses	Steblay et al. (1999) — _____ tests, _____ subjects — and the wider literature both find a _____ effect.（44 · 5,755 · reliable 可靠的）
Strength: methods converge	_____ (Ruva et al.), _____ of real discussion (Ruva and LeVasseur) and surveys (Ogloff and Vidmar) all find bias.（experiments · content analysis 实验 · 内容分析）
Strength: real legal problem	It explains why courts already instruct jurors to avoid _____ of the case.（media coverage 媒体报道）
Weakness: real jurors cannot be used	Researchers cannot _____ negative publicity to real jurors — it might bias them — so nearly all studies are _____.（deliberately expose · mock juries 故意让 · 模拟陪审团）
Weakness: deliberation reduces it	Ruva et al. (2007) found the bias was _____ after deliberation — mock studies with individual verdicts may _____ the effect.（reduced · overstate 减少 · 高估）
Weakness: student samples	Most studies use students reading a _____ — very different from weeks of real news consumption.（short summary 短摘要）

What the justice system does 司法系统的对策

- Jurors are instructed to _____ media coverage and must not _____ the case with others.（avoid · discuss 回避 · 讨论）
- Where publicity is extreme: the case may be _____ to a different area, or the trial _____.（moved · delayed 异地审理 · 延期）
- Why safeguards are questioned: jurors are _____ their own bias (Ogloff and Vidmar), and Ruva and LeVasseur found they _____ the rules anyway.（unaware of · ignore 没意识到 · 无视）

§10 · factor Factor 3 · Expert Testimony — the concept

ANSWERS → 课件 §11

Key term 术语填空

expert testimony 专家证词： evidence given in court by an _____ witness, providing _____ and _____ specialist knowledge that may be beyond the understanding of a juror.（expert · objective · unbiased 专家 · 客观 · 无偏）

Two kinds of expert 两种专家

Kind	What they explain
General experts	Complex _____, _____, _____ or technological evidence.（forensic · clinical · financial 法医 · 临床 · 金融）
Eyewitness expert	Educates the jury about the _____ of witness testimony: memory is _____, not a recording; plus case-specific factors like _____ and the impact of _____.（credibility · reconstructive · cross-racial identification · stress 可信度 · 重构的 · 跨种族辨认 · 压力）

Why an expert might be needed 为什么需要专家

陪审员凭**常识**判断证人可信吗——但常识对记忆是**错的**（多数人以为记忆像录像）。专家的作用 = 把心理学发现搬进法庭。

下一节的问题：搬进去了，陪审员真的会用吗?

The controversy 争议（三条都要会说）

1. Experts may be _____ in their opinion, or unfairly bias a jury _____ a witness.（biased · against 有偏 · 不利于）
2. Safeguards already exist: _____ of the witness and _____.（cross-examination · jury instructions 交叉询问 · 陪审团指示）
3. Researchers reply that those safeguards are _____.（ineffective 无效）

§11 · evid Factor 3 · Does expert testimony actually help?（填关键数字）

ANSWERS → 课件 §12

Study	Key finding 关键发现
Jones et al. (2017)	Mock jury, _____ participants, comparing _____ with _____. Jurors were already _____ to witnessing conditions on their own. Expert testimony raised _____ — less likely to convict _____ of the conditions.（452 · jury instructions · expert testimony · alert · scepticism · regardless）
Jones et al. — conclusion	_____ instructions _____ expert testimony helped jurors tell good evidence from bad. Expert testimony lowers _____ but does not improve _____.（neither · nor · trust · discrimination 既不…也不 · 信任 · 分辨力）
Benton et al. (2006)	Surveyed _____ ordinary people versus experts. Believing memory can be influenced by post-event information: _____% of ordinary people versus _____% of experts. Believing misidentification can occur: _____% versus _____.（111 · 60 · 95 · 30 · 81）
Benton et al. — meaning	Ordinary people are _____ trusting of eyewitnesses than research would advise — evidence that an expert _____ be useful.（more · could 更信任 · 有可能）
Helm (2021)	Murder case with _____ or weak witness testimony; jurors given no instructions, _____ information about memory, or _____ information about false memory.（strong · general · detailed 强 · 一般 · 详细）
Helm — result	Detailed false-memory information _____ guilty verdicts when the evidence was _____, but _____ when it was strong. So expert information helps jurors spot _____ evidence rather than making them blindly sceptical.（reduced · weak · not · weak 减少 · 弱 · 没有 · 弱）

The tension you must be able to state 三个研究的张力（必考评价素材）

Benton：普通人**不懂**记忆 → 专家**有必要**。
Jones：专家**没用**——整体更怀疑，分不出好坏。
Helm：专家**有用**——证据弱时少判，证据强时不变。
结论句：专家证词的效果取决于**给的是什么信息**，不是"有没有专家"。

Helm's own limitations（现成的评价点）

- Mock jurors read a _____ transcript and heard _____ cross-examination.（simplified · no 简化的 · 没有）
- They knew the verdict was _____ real.（not 没有真实后果）
- No opportunity to _____ with other jurors.（deliberate 评议）

Why three studies matter 为什么要记三个

考纲点名这篇研究。三个研究是**接力**的：Study 1 铺路 → Study 2 发现问题 → Study 3 测试解决方案。
记住逻辑链，三个研究就都不容易忘。

The purpose 目的

Study One asked whether research on human memory is good enough to draw _____ conclusions about _____ eyewitness testimony. If not, an expert in court would be useless — or could even _____ the jury.
（valid · real-life · impair 有效 · 真实 · 损害）

What they re-examined 重新分析了什么

- The meta-analysis by _____.（Shapiro and Penrod (1986)）
- _____ eyewitness identification and facial recognition experiments.（128）
- _____ participants in total.（16,950）
- Factors included _____ identification and _____.（cross-racial · context reinstatement 跨种族辨认 · 情境重现）

The finding 发现

Several factors had _____ effects on eyewitness memory in _____ and _____ settings. So laboratory-based memory research _____ explain eyewitness memory — which gives _____ for using expert testimony in court.（reliable · laboratory · field · can · grounds 可靠 · 实验室 · 现场 · 能 · 理由）

The logic chain 逻辑链（写答案照着走）

实验室研究可靠 → 专家讲的东西是真的 → 专家证词**有存在理由**。
Study One 本身没碰陪审团——它是给后面两个研究**铺路**的。

The design 设计

Element	Detail（填空）
Participants	_____ students plus _____ jury-eligible or experienced jurors.（321 · 129）
Materials	A _____-minute videotaped _____ trial resembling a real one: opening statements, examination and cross-examination, closing arguments, judge's instructions.（45 · armed robbery 持械抢劫）
Central evidence	The victim's positive _____ of the robber in a line-up, at _____% confidence.（identification · 80）
The four witnesses	The _____ (victim); a _____ officer; a _____ of the defendant (weak alibi); the _____ himself.（store clerk · police · friend · defendant）
Manipulation	_____ factors across _____ versions of the trial footage.（ten · 64）

The ten factors 十个变量（能说出 5 个以上就很稳）

hat or no hat · weapon pointed or concealed · threatened and pushed or calm demand · identification after 2 or 14 days · mugshot search in between · chance to reject the line-up · line-up of 6 or 12 · members similar in appearance · heard the robber speak or not · 80% or 100% confidence

From memory, write five: _____ _____

The finding — and why it is alarming 发现

- Jurors were _____ influenced by the ten factors.（not significantly 没有显著）
- Only _____ had a statistically significant effect on verdicts.（witness confidence 证人自信度）
- So jurors are _____ to potential witness errors, and place _____ weight on confidence — which is not a useful predictor of accuracy.（naïve · disproportionate 无知 · 不成比例）
- _____ difference between students and eligible/experienced jurors → findings from students _____ to all potential jurors.（no · generalise 可以推广）

One-line version 一句话版

陪审员对**真正重要的条件**（蒙脸、隔几天、列队公平性）**无感**，却对**最没用的东西**（证人有多自信）**极度敏感** → 所以需要专家（Study 3 测试）。

The design 设计

- Researchers: _____; participants: _____ students.（Cutler, Penrod and Dexter · 538）
- Same trial variations as Study Two, now with _____ added.（expert eyewitness testimony 专家证词）
- The expert explained the _____ nature of memory, plus the effects of _____, _____, _____ procedures, and the _____ relationship.（reconstructive · stress · weapon presence · line-up · confidence–accuracy）
- The prosecution _____ the expert — claiming he had only testified for the _____ and that research cannot apply to real eyewitnesses.（cross-examined and discredited · defence 交叉诘问 · 辩方）

Four independent variables 四个自变量（八个条件）

Variable	Level 1	Level 2
Witnessing and identification conditions	_____: disguise, weapon present, recall after 14 days, suggestive line-up.（poor 差）	_____: no disguise, concealed weapon, recall after 2 days, non-suggestive line-up.（good 好）
Witness confidence	_____ per cent（80）	_____ per cent（100）
Form of testimony	_____: describes the research（descriptive 描述性）	descriptive plus _____ with facts and figures（quantitative 量化）
Expert opinion on accuracy	Rating on a _____–_____ scale; rated _____ in the poor condition.（0 · 25 · 7）	Same scale; rated _____ in the strong condition.（20）

The findings 发现

1. Expert testimony _____ juror sensitivity to witnessing and identification conditions.（improved 提高）
2. Jurors gave _____ weight to witness confidence.（less 更少）
3. _____ testimony was more effective than descriptive and quantitative testimony.（Descriptive 描述性）
4. _____ scepticism effect: neither presence nor type of testimony affected credibility ratings or verdicts.（No 没有）

Two counter-intuitive points 两个反直觉发现

① "no scepticism effect" — 专家**没有**让陪审员无差别怀疑所有人（反驳 Jones 一类批评）。
② 信息**不是越多越好**：纯描述 > 描述 + 数据。

§15 · eval Evaluating Penrod and Cutler (1989)

ANSWERS → 课件 §16

Study-to-fact match 研究配对（先自测再对答案）

Study	Method 方法	Key finding 关键发现
One	_____（reassessment of meta-analysis data 重新分析元分析）	Lab research holds in the field → expert testimony has grounds.
Two	_____（experiment: mock jury 模拟陪审团实验）	Only witness confidence mattered → jurors are naïve.
Three	_____（experiment: mock jury + expert testimony 加专家证词的模拟陪审团实验）	Sensitivity improved, less weight on confidence, no scepticism effect.

Evaluation 评价

Point	What + why 内容 + 为什么
Strength: builds logically	Three studies _____ on each other: justify → find the problem → test the _____.（build · solution 解决方案）
Strength: realistic materials	A 45-minute trial video with cross-examination and judge's instructions is far more _____ than a written summary.（realistic 真实）
Strength: two samples	Students _____ jury-eligible/experienced jurors gave the same judgements (Study Two) → supports _____.（and · generalisability 可推广性）
Strength: practical use	Tells courts _____ form of expert testimony helps.（which 哪种）
Weakness: still mock	No real _____, and in Study Three no _____.（consequences · deliberation 后果 · 评议）
Weakness: students	Study Three used _____ students only.（538）
Weakness: contradicted	_____ et al. (2017), with 452 participants, found expert testimony raised scepticism without helping jurors _____ good from bad evidence.（Jones · distinguish 分辨）
Weakness: staged attack	The cross-examination that _____ the expert was staged, so real courtroom _____ may differ.（discredited · dynamics 抹黑 · 动态）

§16 · eval The mock jury evaluation toolkit 模拟陪审团评价工具箱

ANSWERS → 课件 §17

Why this page is powerful 为什么这页最强

本章**几乎所有研究**都是 mock jury → 这一页的每条评价都能**嫁接**到任何研究上。8 分题的评价段落基本从这里出。

Issue	The evidence about the issue 证据（填空）
Students are not representative	_____ (1999) meta-analysis: little difference between student and non-student mock juries; where differences appear, students tend to be more _____.（Bornstein · lenient 宽大）
Written summaries unrealistic	_____ (1977): no difference between written summaries and trials _____ — the format alone does not change the outcome.（Nemeth · staged live 现场演出）
No real consequences	A real jury decides whether a person _____; a mock juror does not — so participants may not take the task _____.（goes to prison · seriously 入狱 · 认真）
Too few variables	Labs isolate variables well, but real jurors face a _____ of influences at once.（wider range 更广的范围）
Real jurors can be asked	Real jurors complete _____ after trials. Self-report has limits, but real jurors report what they _____ decide, whereas a mock trial only records what a participant _____ do.（self-report questionnaires · did · would 事后问卷 · 实际 · 会）
Cross-country differences	Legal processes vary — some US states use the _____, which may change how a guilty verdict feels. Findings may not _____ across jurisdictions.（death penalty · transfer 死刑 · 迁移）

万能三组（背下来）

① **样本** — 学生不代表公众（但 Bornstein 说差别不大，学生还更宽容）。
② **生态效度** — 文字摘要 / 没有真实后果 / 没有评议（但 Nemeth 说形式本身不影响结果）。
③ **跨文化** — 法律制度不同，美国有死刑，结论不能直接搬。

§17 · evid Every number on one page 全部数字一页收口

Cover the right column and test yourself

Study	Factor 因素	The number 数字
Mitchell et al. (2005)	Race	_____ samples from _____ studies; small but significant bias（46 · 34）
Abwender and Hough (2001)	Race	_____ participants（207）
Sigall and Ostrove (1975)	Attractiveness	_____ participants; _____ groups of _____; sentence 1–_____ years（120 · 6 · 20 · 15）
Ruva, McEvoy and Bryant (2007)	Pre-trial publicity	_____% guilty with negative PTP vs _____% without（73 · 27）
Steblay et al. (1999)	Pre-trial publicity	meta-analysis: _____ tests, _____ subjects; _____% vs _____%（44 · 5,755 · 59 · 45）
Ruva and LeVasseur (2012)	Pre-trial publicity	content analysis of _____ deliberations（30）
Jones et al. (2017)	Expert testimony	_____ participants（452）
Benton et al. (2006)	Expert testimony	_____ ordinary people; _____% vs _____% (post-event); _____% vs _____% (misidentification)（111 · 60 · 95 · 30 · 81）
Shapiro and Penrod (1986)	P&C Study One	_____ experiments, _____ participants（128 · 16,950）
Penrod and Cutler Study Two	Juror sensitivity	_____ students + _____ jurors; _____ factors, _____ versions; _____ minute trial（321 · 129 · 10 · 64 · 45）
Penrod and Cutler Study Three	Expert testimony	_____ students; opinion scale _____–_____; poor = _____, strong = _____（538 · 0 · 25 · 7 · 20）

The two pairs most worth memorising 最值得背的两组

59% vs 45%（Steblay，元分析）和 **73% vs 27%**（Ruva）——考 PTP 几乎必带其中一个。

60% vs 95% 和 **30% vs 81%**（Benton）——考"普通人不懂记忆"时直接引用。

§18 · exam Practice A — short answers

Model answers → pp. 21–22

ZsaZsi used a mock jury study to investigate the impact of witness confidence on jurors' perception of the accuracy of eyewitness testimony. She created two videos of the same murder trial, one where the witness stated they were 70 per cent confident in their identification and one where the witness was 100 per cent confident. She gathered participants from her university common room to watch the video and rate whether the murderer was guilty or not guilty.

Q1a — Explain two strengths of ZsaZsi using a mock jury research method (4 marks)

Each strength = **what** + **why it matters for her study**. Two marks per point.

Q1b — Explain two weaknesses of ZsaZsi using a mock jury research method (4 marks)

Each weakness = **what** + **why it matters**. Pull from §16: consequences, deliberation, sample.

Q2 — Describe pre-trial publicity as a factor that influences jury decision-making (3 marks)

Three marks = three developed points: definition · two types · the mechanism (source monitoring error).

Q3 — Justify race as a factor that affects jury decision-making (2 marks)

Two marks = two pieces of **named evidence with numbers**. Not opinions.

Command words 快速对照

Describe = 讲清楚是什么、怎么运作（AO1，不需要评价）。
Explain = 给出原因/机制，要落到"为什么"。
Justify = 用证据支持这个说法成立（AO3，引研究带数字）。
Evaluate = 强弱两面 + 结论（8 分题，见下一页）。

§19 · exam Practice B — the 8-mark essay + brain dump

Model answer → p. 22

Q4 — Evaluate Penrod and Cutler's (1989) research into eyewitness expert testimony (8 marks)

Half the marks for accurate content, half for judgement with evidence. Plan four paragraphs first.

¶	What goes in it 内容	My notes 我的要点
1	**Study One:** re-analysis of Shapiro and Penrod (1986) — 128 experiments, 16,950 participants; lab findings hold in the field → expert testimony has grounds.	
2	**Study Two:** 321 students + 129 eligible jurors; ten factors across 64 versions; only witness confidence mattered — jurors are naïve.	
3	**Study Three:** 538 students; expert testimony improved sensitivity, less weight on confidence, descriptive better than quantitative, no scepticism effect.	
4	**Evaluation:** strengths (logical build, realistic video, two samples) vs weaknesses (mock, students, contradicted by Jones et al. 2017).	

Brain dump — close the book 合上笔记盲测

10 minutes. Write everything you can remember from this workbook, from memory only. 合上册子，凭记忆写下本章全部内容。

pp.2–3 — Foundations and race

jury terms: video or transcript; police; images; review; discuss; confidential; present the decision. Jury of 12, selected randomly; discuss the case; media coverage; cannot decide guilt; expert testimony.
Race mechanism: race, gender, attractiveness and accent trigger stereotypes. HRW (2000): disproportionately imprisoned. Voir dire: not permitted directly; indirectly. Common finding: negative bias, harsher sentences, more guilty verdicts for Black defendants.

pp.4–5 — Race evidence and evaluation

Bradbury & Williams: less likely convicted (more Black jurors); more likely (more white and Hispanic). Skolnick & Shaw: California State University; Black or white defendant; celebrity status; Black jurors more favourable and more lenient; white jurors did not differentiate; no effect of celebrity; fewer guilty verdicts; feared being called racist. Abwender & Hough: 207; Hispanic; leniency; the opposite; no bias. Mitchell et al.: meta-analysis; 46; 34; small but significant; different race; Black jurors; instructions; publication date.
Evaluation: 46; one-off; real conviction; imprisonment; leniency; no white bias; freedom; reduced; not.
Ingriselli: bias, prejudice or sympathy; lower; majority-white juries.

pp.6–7 — Attractiveness and accent

Sigall & Ostrove: 120; 1 and 15 years; burglary or fraud; Barbara Helms; 6 groups of 20; no photograph (control). Attractive+fraud = longer (use looks to con money); attractive+burglary = shorter; unattractive and no-photo similar to control. Criticisms: sentence length (jury only decides guilt; the judge sets the sentence); attractiveness subjective. Halo effect: appearance; character.
Accent: Lev-Ari & Keysar — native; mild; strong; less truthful; difficulty processing. Dixon & Mahoney — standard English; regional (Birmingham); more guilty. Seggie — three accents; interacted; assault; theft.

pp.8–10 — Pre-trial publicity

Definition: potential jurors; media; before. Schema: alters. Source monitoring: confused; read. Factual: incriminating; shorter-lived. Emotional: negative emotions; past; longer-lasting.
Ruva 2007: more; less; 73; 27; reduced; confused. Steblay 1999: meta-analysis; 44; 5,755; 59; 45; serious; multiple; length of time. Ogloff & Vidmar: television; unaware; print. Kovera: pro-defence; pro-prosecution; more. Ruva & LeVasseur: content analysis; prosecution; unwilling to follow.
Evaluation: 44; 5,755; reliable; experiments; content analysis; media coverage; deliberately expose; mock juries; reduced; overstate; short summary.
Safeguards: avoid; discuss; moved; delayed; unaware of; ignore.

Answer Key · Part 2 — expert testimony, Penrod & Cutler, exam models 答案速查（二）

Mark honestly, then re-write in full

pp.11–12 — Expert testimony

Definition: expert; objective; unbiased. Kinds: forensic, clinical, financial; credibility; reconstructive; cross-racial identification; stress. Controversy: biased; against; cross-examination; jury instructions; ineffective.
Jones et al. (2017): 452; jury instructions; expert testimony; alert; scepticism; regardless; neither; nor; trust; discrimination. Benton et al. (2006): 111; 60; 95; 30; 81; more; could. Helm (2021): strong; general; detailed; reduced; weak; not; weak. Helm limitations: simplified; no; not; deliberate.

pp.13–17 — Penrod and Cutler, toolkit

Study One: valid; real-life; impair; Shapiro and Penrod (1986); 128; 16,950; cross-racial identification; context reinstatement; reliable; laboratory; field; can; grounds.
Study Two: 321; 129; 45; armed robbery; identification; 80; store clerk; police; friend; defendant; ten; 64. Finding: not significantly; witness confidence; naïve; disproportionate; no; generalise.
Study Three: Cutler, Penrod and Dexter; 538; expert eyewitness testimony; reconstructive; stress; weapon presence; line-up; confidence–accuracy; cross-examined and discredited; defence. IVs: poor; good; 80; 100; descriptive; quantitative; 0; 25; 7; 20. Findings: improved; less; descriptive; no.
Toolkit: Bornstein; lenient; Nemeth; staged live; goes to prison; seriously; wider range; self-report questionnaires; did; would; death penalty; transfer.

p.19 — Q1a/Q1b model (4 + 4 marks)

Strengths. ① Control: ZsaZsi keeps the trial identical and varies only witness confidence, so confidence is the likely cause of any verdict difference. ② Generalisability of mock juries: Bornstein (1999) found little difference between student and non-student mock juries, and Penrod and Cutler (1989) found students judged the same as jury-eligible jurors — so common-room students may still represent jurors.

Weaknesses. ① Low ecological validity: participants know no one will really go to prison, and there is no deliberation, yet Ruva et al. (2007) showed deliberation changes the effect of bias. ② Sample: students from one common room are unrepresentative; Bornstein notes that where differences appear, students tend to be more lenient, which could underestimate guilty verdicts.

p.19 — Q2 model (3 marks)

① Pre-trial publicity is information about a case that reaches potential jurors through the media — internet, television, newspapers, social media — before the trial begins. ② Factual publicity contains incriminating information and can be corrected as the trial presents evidence, whereas emotional publicity arouses negative emotion (e.g. about the defendant's past) and is longer-lasting. ③ It works through schemas and through source monitoring error: jurors mistake media reports for evidence heard in court.

p.19 — Q3 model (2 marks)

① Mitchell et al. (2005) meta-analysed 46 data samples from 34 studies and found a small but significant racial bias — more guilty verdicts when the defendant was a different race from the juror. ② Bradbury and Williams (2013) found Black defendants were more likely to be convicted by juries with a higher proportion of white and Hispanic jurors.

p.20 — Q4 model (8 marks) — key numbers to have used

¶1 Study One: 128 experiments, 16,950 participants — lab findings hold in the field, so expert testimony has grounds. ¶2 Study Two: 321 + 129; ten factors, 64 versions; only witness confidence mattered — jurors naïve. ¶3 Study Three: 538 students; sensitivity improved; less weight on confidence; descriptive better than descriptive-and-quantitative; no scepticism effect. ¶4 Evaluation: builds logically, realistic video, two samples — but still mock with no consequences, students only, and contradicted by Jones et al. (2017), who found expert testimony did not help jurors distinguish good from bad evidence.